

25STCV02796 25STCV02796

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-02

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Case Number: 25STCV02796 Hearing Date: September 2, 2026 Dept: I

25STCV02726 JASONN INTERNATIONAL, LLC

v. OLD MASTER PRODUCTS, INC.

September 2, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to Seal Declaration

I.

Background

This is a breach of contract action arising out of Defendant Old Master Products, Inc.'s ("Defendant") purchase of goods from Plaintiff Jasonn International, LLC ("Plaintiff"). On January 31, 2025, Plaintiff filed a Complaint against Defendant and DOES 1 through 20, alleging causes of action for (1) Breach of Contract; (2) Breach of Implied-In-Fact Contract; (3) Open Book Account; (4) Account Stated; and (5) Goods Sold and Delivered.

On April 7, 2025, Defendant filed a Demurrer to the Complaint. The matter was fully briefed and came for hearing on May 9, 2025; the demurrer was sustained with 20 days leave to amend as to all causes of action.

On May 27, 2025, Plaintiff filed a First Amended Complaint ("FAC") against Defendants. On June 30, 2025, Defendant filed a Demurrer to the FAC. The matter was fully briefed and came for hearing

on August 22, 2025; the demurrer was sustained with 20 days leave to amend as to the first cause of action and overruled as to the remaining causes of action.

On September 11, 2025, Plaintiff filed the instant Second Amended Complaint ("SAC") against Defendants. On October 14, 2025, Defendant filed a Demurrer to the SAC. The matter was fully briefed and came for hearing on December 3, 2025; the demurrer was sustained with without leave to amend as to the first cause of action.

On July 1, 2026, Defendant filed the instant Motion to Seal. Any opposition would have been due on August 20, 2026. To date, no opposition has been filed.

II. Discussion

Unless confidentiality is required by law, court records are presumed to be open to the public, pursuant to a potent "open court" policy bolstered by the First Amendment of the US Constitution and favoring the public nature of court proceedings. (Cal. Rules of Court, Rule 2.550, subd. (c); see NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1199-10.) Consequently, pleadings, motions, discovery documents, and other papers may not be filed under seal merely by stipulation of the parties; filing under seal requires a court order. (Cal. Rules of Court, Rule 2.551, subd. (a); see H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 888.)

In order to issue a sealing order, the Court must expressly find that: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve protection of the overriding interest. (Cal. Rules of Court, Rule 2.550, subd. (d)(1)-(4) and (e); see McGuan v. Endovascular Techs., Inc. (2010) 182 Cal.App.4th 974, 988.) The constitutional policy favoring disclosure must be balanced against other factors, e.g., privacy rights. (See People v. Jackson (2005) 128 Cal.App.4th 1009, 1026-27.) The Court acts within its discretion in making factual determinations on a motion to seal. (Universal City Studios, Inc. v. Superior Court (2003) 110 Cal.App.4th 1273, 1285.)

A sealing order must be sought by means of a motion (or application) and accompanied by a memorandum of points and authorities, as well as evidence and testimony containing facts sufficient to justify the mandatory findings required to support a sealing order. (Cal. Rules of Court, Rule 2.550, subd. (d) and 2.551, subd. (b).) The proponent of the sealing order must also conditionally lodge the unredacted matter to be sealed with the court. (Cal. Rules of Court, Rule 2.551, subd. (b)(4).)

Here, Defendant moves for an order permitting the filing of the declaration of Marina Davitashvili (hereinafter the "Declaration") in support of its Opposition to the Renewed Application for Writ of Attachment under seal on the grounds that the Declaration "contains confidential, non-public financial and operational information concerning [Defendant]'s internal net earnings, projected lost profits, inventory valuation at cost, liquidity exposure, and financial impact modeling in the event of a wrongful attachment. This information has not previously been publicly disclosed. Public disclosure of this information would cause competitive harm." (Mot. at 2:8-12.) The Court has reviewed the unredacted Declaration which was conditionally lodged under seal pursuant to California Rules of Court, Rule 2.551. The Court makes the following findings.

First, an overriding interest exists that overcomes the right of public access because the Declaration contains Defendant's "confidential, non-public financial and operational information regarding [Defendant]'s internal net earnings, projected lost profits, inventory valuation at cost, and modeled financial impact . . ." (See Hilaski Decl. ¶7.) As discussed in the Court's previous order on Defendant's earlier motion to seal (Min. Order, 5/4/26 at p. 3), California courts routinely recognize that the protection of confidential business financial information overrides public interest as to sufficiently justify sealing. (See *Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1285-1286.)

Furthermore, a substantial probability exists that Defendant's overriding interest in the confidentiality of its financial information will be prejudiced if the record is not sealed. (See *Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 483, 504.) Defendant is a privately held operating company and access to its financial information is limited to senior management and accounting personnel. (Hilaski Decl.,

¶¶5-6.) As such, disclosure of this information would materially disadvantage Defendant in negotiating with vendors, customers, and competitors. (Id., ¶9.)

Moreover, the proposed sealing is narrowly tailored because Defendant “seeks to seal only portions of the Declaration that consist of confidential financial analysis and internal economic modeling prepared in response to Plaintiff’s renewed application to attach more than \$10.9 million of [Defendant’s] property.” (Mot. at 6:23-25.) Additionally, this Court already found this exact request to be appropriate. (See Min. Order, 5/4/26 at p. 3.) Finally, no less restrictive means exists to protecting Defendant’s overriding interest in confidentiality of its financial information.

III.

Conclusion

Accordingly, Defendant Old Master Products, Inc.’s Motion to File the Declaration of Marina Davitashvili Under Seal is GRANTED.

Defendant Old Master Products, Inc. to give notice.